

## 25STCP03267 25STCP03267

County: los-angeles

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Case Number: 25STCP03267 Hearing Date: July 14, 2026 Dept: 836

Superior Court of  
California

County of Los Angeles

AERA ENERGY LLC,

Petitioners,

Case No.

25STCP03267

vs.

[TENTATIVE] RULING ON PETITION FOR WRIT OF MANDATE

COUNTY OF LOS ANGELES, et al.,

Respondents.

Dept. 836 (Hon. Curtis A. Kin)

Petitioner Aera Energy LLC petitions

for a writ of mandate directing respondents County of Los Angeles and the  
County of Los Angeles Board of Supervisors (collectively "County") to produce  
all documents responsive to the June 11, 2025 request made pursuant to  
California Public Records Act ("June 11, 2025 CPRA Request") by a date certain.

## I. BACKGROUND

### A.

#### Factual

#### Background

### 1.

#### Underlying

#### Project

Petitioner sought to

redevelop 2,614 acres of privately owned property within the Rowland Heights area of the County ("Property"), and, under the Rowland Heights Community Plan, the Property could be redeveloped once oil and gas operations thereon became uneconomic. (Pet. Appx. at 10 [Basye Decl. ¶¶ 2-4], 16 [Ex. 1: Verified Petition ¶ 3], 921-1000 [Ex. 31: Application].) In 2002, Aera submitted an application to redevelop the Property ("Project"). (Pet. Appx. at 10 [Basye Decl. ¶ 5], 16 [Verified Petition ¶ 4], 1018 [Ex. 35: 8/14/2018 Email].) The application was deemed complete by 2003, and petitioner pursued the project with County from 2003 to 2020. (Pet. Appx. at 11-14 [Basye Decl. ¶¶ 6-12], 1001-18 [Exs. 32-36].)

Between 2018 to 2023, the

County began legislative efforts to consolidate certain community plans, including the Rowland Heights Community Plan, into a new governing document known as the East San Gabriel Valley Area Plan ("ESGVAP"), which overlapped petitioner's efforts to advance its Project by two years. (Pet. Appx. at 13-14 [Basye Decl. ¶¶ 9-13].) Petitioner was not aware of this new development and its potential effect on the Project. (Pet. Appx. at 17-18 [Ex. 1: Verified Petition ¶¶ 5-8].) By June 2020, County informed petitioner that the Project would be set for denial and that petitioner would have an opportunity to withdraw the Project, which petitioner did. (Pet. Appx. at 14 [Bayse Decl. ¶ 13], 1019-20 [Ex. 36: 6/24/2020 Email].) Petitioner claims it first learned of the ESGVAP on or about February 27, 2023. (Pet. Appx. at 14 [Basye Decl. ¶ 14], 1021-26 [Ex. 37].)

### 2.

#### CPRA

#### Requests and Meet and Confer Efforts

Between August 17, 2023,

and April 4, 2024, petitioner submitted several CPRA requests to the County's Department of Regional Planning, seeking documents relating to the ESGVAP and the Project. (Pet. Appx. at 1-2 [Waggener Decl. ¶ 5], 156-82 [Ex. 3].) In response to these requests, County stated that it lacked responsive records, claimed certain exemptions, and provided incomplete production of documents. (Pet. Appx. at 2 [Waggener Decl. ¶¶ 6-7], 183-214 [Ex. 4], 215-25 [Ex. 5].) Since May 2024, the County's current counsel has been assisting County with the CPRA requests. (County Appx. at 1108 [Park Decl. ¶ 3].)

On September 10, 2024; September 26, 2024; October 2, 2024; and December 16, 2024, petitioner met and conferred with the County through counsel, indicating that the CPRA requests remained outstanding. (Pet. Appx. at 3-4 [Waggener Decl. ¶¶ 10-13], 238-76 [Ex. 7: 9/10/24 Email], 277-89 [Ex. 8: 10/2/24 Email], 290-96 [Ex. 9: 12/16/24]; see also County Appx. at 1108-09 [Park Decl. ¶¶ 4-6].) Between August 2023 and September 2024, petitioner received 161 records, and petitioner asserts that 82 records were nonresponsive; the remainder were incomplete or redacted without explanation. (Pet. Appx. at 2 [Waggener Decl. ¶ 7].)

On December 23, 2024, petitioner served a consolidated and renewed CPRA request on the County. (Pet. Appx. at 4 [Waggener Decl. ¶ 14], 297-303 [Ex. 10].) Thereafter, in early 2025, petitioner provided the County with Boolean search terms<sup>[1]</sup> that could be used to discover electronic correspondence concerning the ESGVAP. (Pet. Appx. at 5-6 [Waggener Decl. ¶¶ 15-16], 304-81 [Ex. 11: Email Chains, dated 1/10/25, 2/3/25, and 2/21/25]; see also County Appx. at 1109 [Park Decl. ¶ 8(a)], 1113-41 [Boolean Search Terms].) As represented by petitioner, between December 2024 and June 2025, the County produced 936 records, with 117 of them being non-responsive, and, of the responsive records produced, such records were incomplete and redacted without explanation. (Pet. Appx. at 5 [Waggener Decl. ¶ 18], 444-60 [Ex. 15: Sample of Document Production].)

By June 11, 2025, petitioner served the pertinent CPRA request at issue here, which consolidated all prior unfulfilled requests and covered several departments. (Pet. Appx. at 5-6 [Waggener Decl. ¶ 19], 461-66 [Ex. 16]; see also County Appx. at 1110-11 [Park Decl. ¶ 9].) As framed by petitioner, this request sought the following documents:

(i) all records received

by the County since 2018 relating to Aera or the Property; (ii) records sent or received by the County since 2018 relating to Aera's operations in connection with the ESGVAP with specific organizations, their members and/or their representatives; (iii) records transmitted to Aera by the County relating to Aera's Property; and (iv) records related to [the Project].

(Pet. Appx. at 5-6  
[Waggener Decl. ¶ 19].)

On June 23, 2025, the County provided its initial response to the June 11, 2025 CPRA Request, and, on July 7, 2025, the County provided its first batch production in response to the request. (County Appx. at 1111 [Park Decl. ¶ 13], 1173-75 [Ex. 53: 6/23/25 Email], 1176-80 [Ex. 54: 7/7/25 Production].) The County produced the second batch on July 31, 2025. (County Appx. at 1111 [Park Decl. ¶ 14], 1181-83 [Ex. 55: 7/31/25 Production].) After the commencement of this lawsuit, the County has produced thirteen additional batch productions. (County Appx. at pp. 1111 [Park Decl. ¶ 14]; 1184-1209 [Exs. 56-68: Batch Productions Nos. 3-15].) Each production includes the estimated date when County would produce the next batch of documents. (County Appx. at 1111 [Park Decl. ¶ 15].) The searches have primarily been conducted by one County employee since June 11, 2025, and, of the 614 search parameters provided by petitioner, this employee has conducted 191 such searches because he is only able to conduct five searches per day in addition to his other job duties. (County Appx. at 1103-05 [Romero Decl. ¶¶ 5-14].) As represented by County, the search for responsive documents is ongoing. (County Appx. at 1105-1106 [Romero Decl. ¶¶ 15-16].)

Petitioner asserts that the records produced in July 2025 are incomplete because they do not include responsive attachments that are referenced in certain email correspondence and include redactions without explanation. (Pet. Appx. at 6 [Waggener Decl. ¶ 20], 467-75 [Sample of 7/25 Production].) As for the remaining batches, petitioner acknowledges that the productions produced after commencing the instant litigation contain "highly responsive records," but, in petitioner's view, they remain incomplete and redacted without explanation. (Pet. Appx. at 7 [Waggener Decl. ¶ 23], 501-27 [Ex. 19: Sample of Responsive Records], 525-50 [Sample of Redacted and Incomplete Records].)

In connection with the written discovery propounded in this action, the County admitted that it lacked

sufficient information to respond to several requests because it had not yet reviewed its records. (Pet. Appx at 559-67, 590-94 [Ex. 21: SROGs Responses Nos. 10-17, 5-57, 59], 603-06, 610-11, 633-38, 649-52 [Ex. 22: RFA Responses Nos. 1, 3, 5, 15, 16, 59-61, 63-64, 90-94].) In addition, the County's discovery responses revealed that many records had not been produced. (Pet. Appx. at 603-06, 608-10, 612, 614 [Ex. 22: RFA Nos. 2, 4, 6, 10-12, 14, 18, 22, 34-37].) With respect to the basis for County to withhold and/or redact records, the County responded that those records are protected from disclosure under the attorney-client privilege, attorney work product privilege, and/or the deliberative process privilege. (Pet. Appx. 731-44 [Ex. 24: Amended Responses to SROGs Nos. 1-10.]) The County has not produced a privilege log.

In the instant Verified

Petition for Writ of Mandate, filed August 22, 2025, petitioner contends that the County has violated the CPRA by not promptly producing all responsive documents to the June 11, 2025 CPRA Request and by withholding records without a legitimate basis. (Pet. Br. at 10-15.)

## II. DISCUSSION

### A.

#### Standard of Review

Pursuant to the CPRA

(Gov. Code § 7921.000, et seq.), individual citizens have a right to access government records. In enacting the CPRA, the California Legislature declared that “access to information concerning the conduct of the people's business is a fundamental and necessary right of every person in this state.” (Gov. Code § 7921.000; see also Cal. Const. Art. I, Sec. 3(b); County of Los Angeles v. Superior Court (2012) 211 Cal.App.4th 57, 63.)

“[E]very person has a right to inspect any public record” of a state or local agency subject to statutory exemptions. (Gov. Code § 7922.530(a); see also Gov. Code § 7920.510(h) [definition of “local agency” includes agent of a city].) The California Constitution mandates that the CPRA be “broadly construed,” while any statute “that limits the right of access” must be “narrowly construed.” (See Cal. Const. Art. I, Sec. 3(b)(2); see also Nat'l Lawyers Guild v. City of Hayward (2020) 9 Cal.5th 488, 507.) The CPRA “does not allow limitations on access

to a public record based upon the purpose for which the record is being requested, if the record is otherwise subject to disclosure.” (Gov. Code § 7921.300.)

Petitioner bears the burden of proof and persuasion in a mandate proceeding brought under CCP § 1085. (California Correctional Peace Officers Assn. v. State Personnel Bd. (1995) 10 Cal.4th 1133, 1154.) “To establish an agency has a duty to disclose under [the CPRA], the petitioner must show that: (1) the record ‘qualif[ies] as [a] ‘public record[ ]’ ...; and (2) the record is ‘in the possession of the agency.’” (Anderson-Barker v Sup.Ct. (2019) 31 Cal.App.5th 528, 538.) “Whether a record falls within the statutory definition of a ‘public record’ involves a ‘distinct inquiry’ from whether the agency is in possession of that record.... The duty to disclose applies only when the petitioner has satisfied both elements.” (Id. at 539.)

CPRA exemptions must be narrowly construed, and the agency bears the burden of showing that a specific exemption applies. (Sacramento County Employees’ Retirement System v. Superior Court (2013) 195 Cal.App.4th 440, 453.) A public agency also has the burden to demonstrate that it properly withheld records on the grounds they are non-responsive to a CPRA request or do not constitute public records. (ACLU of Northern Cal. v. Sup. Ct. (2011) 202 Cal.App.4th 55, 83-86.) “Because the agency has full knowledge of the contents of the withheld records and the requester has only the agency’s affidavits and descriptions of the documents, its affidavits must be specific enough to give the requester ‘a meaningful opportunity to contest’ the withholding of the documents.” (Id. at 83.)

B.

#### Evidentiary Objections

The County’s evidentiary objections to the Declaration of George Basye are **OVERRULED** in their entirety. The County’s evidentiary objections to the Declaration of Sigrid R. Waggener are **OVERRULED** in their entirety.

Petitioner’s evidentiary objections to portions of the Declaration of Adrine Arakelian are **SUSTAINED** in their entirety on the grounds that the objected portions consist of improper argument and legal conclusions concerning whether the County met the applicable statutory

deadlines. (See *Tuchscher Dev. Enters, Inc. v. San Diego Unified Port Dist.* (2003) 106 Cal.App.4th 1219, 1240.) Petitioner's evidentiary objection to the Declaration of Kathy Park is **OVERRULED**.

C.

Ripeness

The County contends that the Court is precluded from determining whether the CPRA has been violated at this moment because the June 11, 2025 CPRA Request is still being processed. (Opp. at 20-21.) The Court disagrees.

A case is ripe where there is "a real and substantial controversy admitting of specific relief through a decree of a conclusive character." (*Pacific Legal Found. v. Cal. Coastal Com.* (1982) 33 Cal.3d 158, 171.) An individual may seek a writ of mandate pursuant to the CPRA "to enforce that person's right under this division to inspect or receive a copy of any public record or class of public records." (Gov. Code § 7923.000.)

Here, the County concedes that it has refused to produce certain documents in response to petitioner's CPRA requests on the basis of certain privileges. (County Appx. at 1112 [Park Decl. ¶¶ 19-21].) Petitioner also argues that the County has violated the CPRA by not producing responsive records promptly.[2] (See *County of San Benito v. Superior Court* (2023) 96 Cal.App.5th 243, 264 ["A trial court remains free to promptly adjudicate whether a public agency has failed to comply with its obligations under the Public Records Act by slow-rolling its production of records or by refusing to propose an enforceable schedule for timely production. . . ."].) Accordingly, the instant matter is ripe for adjudication.

D.

Whether County has "Promptly" Produced Documents

Petitioner contends that the County has violated the CPRA because it has failed to promptly produce the requested documents subject to the June 11, 2025 CPRA Request. The Court disagrees.

Per Government Code § 7922.530(a): "Except with respect to public records exempt from disclosure by express provisions of law, each state or local agency, upon a request for a copy of records that

reasonably describes an identifiable record or records, shall make the records promptly available to any person upon payment of fees covering direct costs of duplication, or a statutory fee if applicable.” While records must be produced promptly, the CPRA does not establish a specific timeframe for the actual production. (*Voice of San Diego v. San Diego Unified School District* (2026) 120 Cal.App.5th 923, 943.)

As stated in *Voice of San Diego v. San Diego Unified School District*, a local agency must “produce records quickly and without delay as the occasion demands,” but “this determination necessarily requires consideration of the scope and burden imposed on the particular agency by the particular request.” (Id. at 946.) As such, the Court of Appeal determined that the following factors are appropriate to assess promptness: (1) “the specificity and breadth of the request”; (2) “the nature and location of the records sought”; (3) “the volume of data to be searched”; (4) “the storage medium that must be accessed”; (5) “the level of review required for any exemptions and redactions”; (6) “the complexity of the request”; and (7) “the size, scope and complexity of the business or activities of the agency responding to the request.” (Id. at 946-47.)

Here, it is undisputed that the documents petitioner seeks constitute public records. While petitioner has sought public records from the County since August 17, 2023, the Court notes that, over the course of three years, several requests have been issued and later consolidated twice. (Pet. Appx. at 1-2, 4-6 [Waggener Decl. ¶¶ 5, 14, 19], 156-82 [Ex. 3], 297-303 [Ex. 10], 461-66 [Ex. 16]; see also County Appx. at 1110-11 [Park Decl. ¶ 9].) The requests also encompass multiple County departments. (Pet. Appx. at 462-66 [Ex. 16: June 11, 2025 CPRA Request]; County Appx. at 1103 [Romero Decl. ¶ 5].) Petitioner proposed 259 Boolean search terms for the County’s search efforts on February 3, 2025, and eventually provided 614 amended search terms on December 23, 2025 and January 5, 2026. (County Appx. at 1109-10 [Park Decl. ¶¶ 8(a), 8(e)], 1113-41 [Ex. 48].) In addition to these searches, petitioner provided a set of over 100 custodians and 50 external individuals to be included in the County’s search efforts.

In complying with petitioner’s CPRA request, the County has primarily tasked one of its employees to conduct the search efforts, and, since June 2025, he has completed 191 searches, yielding 976 terabytes of potentially responsive records. (County



Appx. at 1103-04 [Romero Decl. ¶¶ 6-11].) County represents that this employee is only able to conduct five searches a day while attending to his other job duties. (County Appx. at 1103-05 [Romero Decl. ¶¶ 5-14].) The County has produced fifteen batches of document production since July 2025 on a rolling basis.[3]

(County Appx. at 1111 [Park Decl. ¶¶ 13-14], 1176-1209 [Exs. 54-68: Batch Productions Nos. 1-15].) The mere fact that only one employee is tasked with this endeavor does not suggest that the County is engaged in an unlawful practice of delaying disclosure.

Petitioner has not submitted any evidence to suggest otherwise.

Therefore, even though petitioner specifically only seek records relating to the ESGVAP and the Project and has been actively involved in refining the search efforts, it is evident that the volume of the records that needs to be searched and reviewed pursuant to petitioner's CPRA requests is extensive. As a result, this Court does not find that the County has failed to promptly produce records under the circumstances.

Because petitioner has not presented sufficient evidence to show that County has not been producing records promptly, the Court finds that the County has not violated Government Code § 7922.530.

E.

Whether County has Improperly Withheld Documents

Petitioner contends that the County has been withholding documents without a legitimate basis. (Pet. Br. at 12-15.)

"To carry its burden, the County must describe the justification for nondisclosure with reasonably specific detail and demonstrate that the information withheld is within the claimed privilege or exemption. This process cannot require an agency to disclose the very information it seeks to protect. Having both the burden of proof and all the evidence, the agency has the difficult task of justifying its withholding the documents without compromising that very act by revealing too much information." (Golden Door Properties, LLC v. Superior Court (2020) 53 Cal.App.5th 733, 790.)

Here, the County claims that it has properly withheld documents under the attorney-client privilege, work product doctrine, and the deliberate process privilege. (Opp. at 17-19.) In support of this

claim, the County relies only on conclusory statements made in the Declarations of Adrine Arakelian and Kathy Park. (County Appx. at 1033 [Arakelian Decl. ¶¶ 18-19], 1112 [Park Decl. ¶¶ 19-21].) Neither declaration appropriately satisfies the standard set forth in *Golden Door Properties, LLC*, as the statements made by the County's Principal Regional Planner and Deputy County Counsel do not meaningfully show that the withheld documents are actually privileged and subject to withholding. For this reason, it is appropriate for the County to prepare a Vaughn Index/privilege log. (See *State Bd. of Equalization v. Sup. Ct.* (1992) 10 Cal.App.4th 1177, 1193 ["Although the Public Records Act does not, like the FOIA, require the maintenance of an index of records available for public inspection and copying, it does not prohibit a court from ordering the preparation of a list of the documents which are sought"].)

Accordingly, the Court finds on this record that the County has failed to carry its burden for withholding documents, but, before ordering the production of any particular withheld document(s), County shall prepare a Vaughn Index/privilege log for petitioner. Thereafter, if there is any particular identified document for which withholding is contested, such document shall be subject to in camera review prior to an order for production by this Court. (Gov. Code § 6259; Evid. Code § 915; *County of Los Angeles v. Superior Court* (2000) 82 Cal.App.4th 819, 835.)

F.

#### Other Violations

Petitioner also argues that the County has violated the CPRA by not producing all responsive records and by not complying with Government Code § 7922.535. The Court is only unpersuaded by the latter argument, which relates to the obligation to state an estimated date and time for production of responsive records.

In arguing that County has failed to produce all responsive records, petitioner relies on the discovery responses from the County. (Pet. Br. at 10.) Those responses merely state that the County has not yet completed its review of the records.[4]

(Pet. Appx at 559-67, 590-94 [Ex. 21: SROGs Responses Nos. 10-17, 5-57, 59], 603-06, 610-11, 633-38, 649-52 [Ex. 22: RFA Responses Nos. 1, 3, 5, 15, 16, 59-61, 63-64, 90-94].) As discussed above,

the Court recognizes that there may be good reason as to why the production of the requested records is still on-going and that a privilege log must still be prepared. Under the circumstances, the Court thus does not find that the County has failed to produce all responsive records at this juncture.

With respect to Government Code § 7922.535, while the CPRA does not establish a specific timeframe to produce records, a local agency must provide the estimated date and time when the records will be available if it is determined that the request seeks disclosable public records. (Gov. Code § 7922.535(a).) Although County has been producing records on a rolling basis and given interim projections for the next batch of production, it has failed to communicate any meaningful timetable or estimate of when the production would be completed. This is a violation of Government Code § 7922.535.

### III. CONCLUSION

For the foregoing reasons, the petition is GRANTED IN PART in limited respects and otherwise DENIED in all other respects. Because County has failed to carry its burden to justify why it has withheld certain documents and has not complied with Government Code § 7922.535(a), a writ shall issue requiring County to produce a Vaughn Index/privilege log to petitioner and to provide a reasonable estimate of when it will complete its production of documents in response to the June 11, 2025 CPRA Request.

Pursuant to Local Rule 3.231(n), petitioner shall prepare, serve, and ultimately file a proposed judgment.

Date: July  
14, 2026

HON.  
CURTIS A. KIN

[1] Petitioner later amended its proposed search terms on December 23, 2025, and January 5, 2026, consisting of 612 search strings. (County Appx. at 1110 [Park Decl. ¶ 8(e)].)

[2] The County asserts that the instant

litigation only concerns the June 11, 2025 CPRA Request, which references the December 23, 2024 CPRA request. (Opp. at 8, fn. 3.) This ignores the fact that the December 23, 2024 CPRA request was a consolidation of prior CPRA requests. (Pet. Appx. at pp. 4 [Waggener Decl. ¶ 14]; 297-303 [Ex. 10].) Thus, for all intents and purposes, this litigation pertains to the prior CPRA requests as well.

[3] Petitioner acknowledges that the County produced documents responsive to its CPRA requests prior to July 2025. (Pet. Appx. at 2, 5 [Waggener Decl. ¶¶ 7, 18].) Given that the parties were meeting and conferring to refine the scope of the requests, the Court does not find that the period prior to July 2025 evidences undue delay. Given that batch productions began prior to the commencement of this lawsuit, the Court is also unpersuaded by petitioner's claim that this lawsuit is what triggered the County's compliance.

[4] To the extent that petitioner seeks the production of any text messages or correspondence between County Supervisors, it is unclear at this juncture whether those messages would fall under a privileged exemption because a privilege log would need to be produced.